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UTDPP1062

General Standards and Procedures for Review of Nontenure-System Faculty

Policy Statement



Preamble

The ideal of a research university is a university in which all those who convey knowledge are also engaged in producing it. Further, those engaged in producing knowledge require and should have, as a necessary condition in support of their freedom of inquiry, the protection of tenure. The faculty of The University of Texas at Dallas has been dedicated to this concept since the University began and this dedication does not waver. Other things being equal, as many of the faculty as practicable should

hold tenure-system appointments. However, in practice a substantial component of instructional responsibilities will continue to be met with faculty who are not part of the tenure system. The term "nontenure-system faculty" means faculty with classroom or class-laboratory responsibilities who are hired for a fixed term of service and who are not subject to the various rules and regulations pertaining to tenure-system faculty. Nontenure-system faculty titles may include but are not limited to the following: Senior Lecturer 1, Senior Lecturer 2, Senior Lecturer 3, Clinical Assistant Professor, Clinical Associate Professor, Clinical Full Professor (Clinical Professor), Assistant Professor of Instruction, Associate Professor of Instruction, Professor of Instruction, Assistant Professor of Practice, Associate Professor of Practice, and Professor of Practice.

It is the policy of The University of Texas at Dallas that nontenure-system faculty should be treated as true colleagues in a collective academic enterprise. Nontenure-system faculty should have the same kinds of working conditions and expectations of fair and considerate treatment as tenure-system faculty and should be able to work with tenure-system faculty as genuine colleagues. Accordingly, the purpose of this policy is to require the establishment of processes for nontenure-system faculty hiring and evaluation. This policy is to be implemented in the schools and Hobson Wildenthal Honors College (HWHC) as the responsibility of the School Deans and Faculty and the HWHC Dean. Promotion recommendations regarding nontenure-system faculty are not to be reviewed by the Committee on Qualifications of Academic Personnel. The Academic Senate will exercise general oversight with respect to the academic policy referenced herein. The Chief Academic Officer will exercise general oversight with respect to letters of appointment and compliance with *Rules and Regulations*.

Standards of Evaluation

- 1. Peer-Reviewed Research and Academic Achievement:** Except for Research Professors, peer-reviewed research and academic achievement are not required of nontenure-system faculty as part of their normal assigned responsibilities at U. T. Dallas. However, nontenure-system faculty have the same standing to seek funding for, and to pursue, funded research as other faculty. If peer-reviewed research and academic achievements, such as maintaining an academic qualification required by accreditation boards, are required as a condition of employment, this requirement must be specified in writing and should be included in the evaluation. When not required, they may still be noted in peer reviews. Evidence of research and academic achievements can include publication in peer-reviewed journals; monographs which contribute to advancing knowledge or its utilization

in the resolution of societal problems; development of widely adopted clinical or educational techniques which advance the quality of life; presentations at professional gatherings; literary publications, performances, and visual and other artistic contributions in regional and national exhibitions.

2. **Teaching:** It is important that evaluating committees seek a variety of ways to evaluate an individual's teaching. Teaching effectiveness is not to be measured solely in terms of teaching in organized courses. It also includes the ability and willingness to develop new courses and to teach a wide variety of courses. Evaluating committees should consider the importance of such courses to the instructional programs, and the development of innovative teaching methods. Teaching also extends to curriculum development and student advisement.
3. **University Service and Citizenship:** University citizenship is that amorphous blend of willingness to participate actively as citizens in the life of the University and as collegial representatives of the University in extramural settings. Service, in contrast to administration, includes membership in governance bodies and committees, program planning and development, public service, and special assignments from Deans or the University Administration.
4. **Administration:** Nontenure-system faculty may be assigned duties that require academic knowledge and experience, but are also heavily administrative, such as Associate Deans for Undergraduate Education, graduate student advisor, and graduate clinical instructor or coordinator. Aspects of this type of activity that indicate good or poor performance include overall work-load or case-load, the overall levels of satisfaction and good order in the program, letters or other expressions of satisfaction or dissatisfaction from students, colleagues, or immediate supervisors, and the development of innovative methods or program designs.

Procedures

1. **Inclusion in bylaws:** Procedures for hiring and peer review of nontenure-system faculty should be incorporated in the bylaws of the School and the administrative procedures of the HWHC.
2. **Rank and recognition of employment history:** Nontenure-system faculty titles should be given in accordance with Regents' *Rules and Regulations* Rule 31001, Part 2, Section 2.2. Criteria for these differentiations might include relevant degrees, teaching experience, work experience, research experience, and creative contributions. A change in title for a nontenure-system faculty member whose contract is being renewed should be based on a record of excellence relevant to their assignments or reflect distinguished attainments relevant to their assignments.

3. **Hiring:** For hiring nontenure-system faculty, each School or Department and the HWHC should institute a committee or designate an already existent committee as a search committee. Whenever possible, at least one nontenure-system faculty member at the highest rank should be included on the search committee. The search committee will recommend a candidate and an initial hiring rank to the Dean and/or Program Head. Whenever possible, program faculty will be given the opportunity to comment on this recommendation prior to any formal job offer.
4. **Teaching Evaluation:** Each School and the HWHC should establish or designate a committee to review and provide advice on the teaching performance of nontenure-system faculty. For the schools, this evaluation may be assigned to the School Committee on Effective Teaching. For this purpose, the committee should include an appropriate number of nontenure-system faculty members, depending on their number in the School. A School Committee on Effective Teaching is mandated by UTDPP1006.
5. **Orientation programs and advice:** Each School or Department and the HWHC with nontenure-system faculty should develop orientation programs and materials for them and assure that there are procedures and processes to provide ongoing advice. This program should involve both more experienced nontenure-system faculty and tenure-system faculty. If there is a mentoring program, nontenure-system faculty should be included as appropriate given their work assignments and numbers in the School or College. The Schools or Department should clearly designate a faculty member or faculty body to consult with each nontenure-system faculty member in regard to his or her academic responsibilities. Nontenure-system faculty should also consult regularly with the HWHC Dean and School Deans and Associate Deans.
6. **Periodic Review:** All faculty at U. T. Dallas are subject to an annual administrative review. For annual administrative reviews, nontenure-system faculty will submit annual review documents in the same manner and at the same times as tenure-system faculty.
7. **Contract Term and Renewal:** Under Regents' *Rules and Regulations, Rule Number 31001*, the longest appointment available to nontenure-system faculty is three academic years (which may be renewable in accordance with *Texas Education Code* [Section 51.943](#)). Initial appointments are for one academic year but can be as long as three academic years in situations deemed appropriate by the Dean and Provost. If a position is expected to be short term, it should be clearly identified as a visiting or a lecturer position. One year contracts and all initial contracts are deemed to be probationary. Subsequent contracts shall be offered on or before May 15, if possible. At the discretion of the Dean and the Provost, subsequent contracts may be offered for one, two, or three academic years. Two year annually renewable contracts should typically be awarded to faculty at the level of Senior Lecturer 2 and 3, Clinical Associate Professor, Clinical Professor, Associate

Professor of Instruction, Professor of Instruction, Associate Professor of Practice, or Professor of Practice if they have completed their probationary period with evaluations indicating that they meet expectations. Two year annually renewable contracts should also typically be awarded to faculty at the level of Senior Lecturer 1, Clinical Assistant Professor, Assistant Professor of Instruction, and Assistant Professor of Practice if they have completed three years of service with evaluations indicating that they meet expectations. Three year annually renewable contracts should typically be awarded to faculty whose work clearly exceeds expectations. Notwithstanding these guidelines, per Regents' Rules there can be no expectation of employment beyond the current appointment period.

8. **Promotion Process:** Each School or Department with nontenure-system faculty should develop a process for review of nontenure-system faculty involving tenure-system faculty and above-rank nontenure-system faculty as appropriate in the School or Department. The HWHC will not have tenure-system faculty and will utilize the committee process outlined below for faculty with an appointment in the College which includes input by other non-tenure system faculty. These reviews should strive for an even consideration of strengths and weaknesses and should attempt to commend performance that is already outstanding as well as give constructive advice where performance can be improved. The weighting of the standards of evaluation should reflect the employment contract. The interpretation of the standards of evaluation should reflect the interpretations of the School or Department bylaws or the HWHC's administrative procedures. The reviews may result in recommendations of non-renewal, renewal in rank, renewal at a higher rank, renewal with recognition of excellence or distinction, or changes in assignment. Two of the more common promotional lines for nontenure-system faculty are Senior Lecturer 1, Clinical Assistant Professor, Assistant Professor of Instruction, or Assistant Professor of Practice to Senior Lecturer 2, Clinical Associate Professor, Associate Professor of Instruction, or Associate Professor of Practice to Senior Lecturer 3, Clinical Professor, Professor of Instruction, or Professor of Practice.
9. **Deadline:** All reviews should be complete by March 30 each year.

Promotion Review Committees for Hobson Wildenthal Honors College Instructional Faculty

The review process for nontenure-system faculty members with appointments in the HWHC will be conducted by committees formed by the HWHC Dean that will include a combination of HWHC faculty and faculty from the discipline aligned with the candidate's teaching as specified below.

For nontenure-system faculty considered for promotion from Assistant to Associate Professor of Instruction, the committee will consist of two nontenure-system faculty in the HWHC of higher academic rank, and two faculty, either tenured or nontenured, but of at least the Associate or equivalent rank from a discipline aligned with the candidate's teaching.

For nontenure-system faculty considered for promotion from Associate to Professor of Instruction, the committee will consist of two nontenure-system faculty in the HWHC of higher rank, and two faculty, either tenured or nontenure, but of at least the Full Professor or equivalent rank from a discipline aligned with the candidate's teaching. If there are insufficient numbers within HWHC to serve on the committee, the HWHC Dean will appoint equivalent members outside of the HWHC preferably from the Center for Teaching and Learning.

Review of Files

A nontenure-system faculty member who will be reviewed by a faculty body under this policy is responsible for preparing the file that will constitute the essential basis for this review. The Review File as submitted by the nontenure-system faculty member to the HWHC Dean, School Dean, Department Chair, or Program Head will include a complete professional curriculum vitae from the nontenure-system faculty member which covers the areas of assigned responsibility and any additional areas the candidate wishes to have considered. For teaching evaluation, information should include statistical summaries of the teaching evaluation form for each course taught during the previous six regular, long semesters (including transcripts of or original comments by students) as well as information on course content and process, such as copies of syllabi and exams. Upon receipt of the basic Review File from the nontenure-system faculty member, the Office of the Dean will inventory the contents and insert a copy of the inventory in the file. The designated reviewing committee has the authority and responsibility to add material to the basic Review File, these additions being clearly identified components of the Review File. Possible additions will include items such as the letters from external and internal evaluators for the committee's review of teaching performance, and the committee's recommendations. All these additions will be entered on the file inventory sheet.

Right to View Files

If a nontenure-system faculty member under review requests to see his or her file during the review process, the Dean, Department Chair, or Program Head shall make the file available within three working days.

Opportunities

Nothing in this policy, the HWHC administrative procedures, or in the bylaws of a School or Department should be construed as precluding nontenure-system faculty members from applying and being considered for tenure-system positions in the manner established for those positions.

Grievance and Appeal

Faculty grievance procedures which apply to tenure-system and nontenure-system faculty are specified at <https://policy.utdallas.edu/utdpp1050>.

Procedures for appeal of a decision on reappointment or promotion to a nontenure-system position

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